

CHAPTER 46.

An Act to amend the law with respect to customs
in the Isle of Man. [31st July 1934.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) The customs duty payable on arc lamp
carbons under section thirteen of the Act of 1926 shall, instead of being at the rate of one shilling per pound weight, be at the rate of five shillings per pound weight in the case of carbons exceeding fourteen millimetres in diameter and seven shillings and sixpence per pound weight in the case of other carbons.

Increase of
duty on arc
lamp
carbons.
16 & 17
Geo. 5. c. 27.

(2) This section shall be deemed to have had effect as from the eighth day of June nineteen hundred and thirty-four.

2.—(1) The customs duty payable on insulin and its salts under section thirteen of the Act of 1926 shall cease to be charged, and Part I of the first Act of 1932, as amended by any other enactment, shall have effect as if insulin and its salts were included in the First Schedule to that Act.

Repeal of
duty on
insulin.
22 & 23
Geo 5. c. 16.

(2) This section shall be deemed to have had effect as from the date on which the Finance Act, 1934, came into operation.

24 & 25
Geo. 5. c. 32.

3.—(1) There shall be payable on the removal or importation into the Isle of Man of patent leather not forming part of another article, and of goods composed wholly of patent leather, a duty of customs equal to fifteen per cent. of the value of the goods :

Duty on
patent
leather.

Provided that this section shall not apply to any goods which fall within some class or description of goods on which an additional duty is for the time being chargeable under section two of the second Act of 1932, as amended by any other enactment, if the

22 & 23
Geo. 5. c. 41.

aggregate amount of the additional duty and the general ad valorem duty exceeds fifteen per cent. of the value of the goods.

23 & 24
Geo. 5. c. 40. (2) Sections nine and ten of the Act of 1933 and any other enactment relating to those sections shall have effect as if the duty chargeable under this section were chargeable under the said section nine.

22 & 23
Geo. 5. c. 53. (3) The foregoing provisions of this section shall be deemed not to be in force at any time when the agreement between His Majesty's Government in the United Kingdom and His Majesty's Government in Canada, set out in Part I of the First Schedule to the Ottawa Agreements Act, 1932, is not in force within the meaning of that Act.

(4) This section shall be deemed to have had effect as from the eighth day of June, nineteen hundred and thirty-four.

Continuation of certain annual duties. 4. Subject as hereinafter provided, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table shall continue to be payable as from the first day of August, nineteen hundred and thirty-four, until the first day of August, nineteen hundred and thirty-five:—

TABLE.

	Description of Goods.	Enactment imposing Duty.
	Ale and beer - - - -	Section 8 of the second Act of 1932.
15 & 16 Geo. 5. c. 56. 17 & 18 Geo. 5. c. 20. 18 & 19 Geo. 5. c. 38.	Cinematograph films - -	Section 6 of the Act of 1925, as amended by section 12 of the Act of 1927 and section 14 of the Act of 1928.
14 & 15 Geo. 5. c. 24.	Cocoa - - - -	Section 4 of the Act of 1924.
	Clocks and watches and component parts of clocks and watches.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933.

Description of Goods.	Enactment imposing Duty.	
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.	
Hop oil - - - - -	Section 3 of the Act of 1929.	20 & 21 Geo. 5. c. 1.
Matches - - - - -	Section 1 of the Act of 1933.	
Motor cars, including motor bicycles and motor tricycles, and their accessories and component parts.	Section 6 of the Act of 1925, as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927.	
Musical instruments, including gramophones, pianolas and other similar instruments; and accessories and component parts of musical instruments, and records and other means of reproducing music.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933.	
Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932 and section 4 of the Act of 1933.	
Spirits - - - - -	Section 2 of the Act of 1930.	20 & 21 Geo. 5. c. 42.
Sweets - - - - -	Section 2 of the Act of 1929 as amended by section 3 of the Act of 1933.	
Tea - - - - -	Section 7 of the second Act of 1932.	
Tobacco - - - - -	Section 19 of the first Act of 1932.	
Wines - - - - -	Section 1 of the Act of 1927 as amended by section 8 of the Act of 1933.	

Provided that, where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the

provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and thirty-five, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power which are for the time being in force.

Provisions
as to goods
becoming or
ceasing to
be exempt
from
general ad
valorem
duty.

5.—(1) When any goods, being goods chargeable on their removal or importation into the Isle of Man with the general ad valorem duty and an additional duty, cease to be so chargeable with the general ad valorem duty, or ceased before the passing of this Act to be so chargeable with that duty, the order of the Governor directing the additional duty to be charged shall cease to have effect, or be deemed to have ceased to have effect, as the case may be, as respects those goods:

Provided that nothing in this subsection shall affect the provisions of subsection (4) of section nine of the Act of 1933.

(2) The power conferred on the Governor by subsection (3) of section one of the first Act of 1932 and by section one of the second Act of 1932 to make orders directing that goods shall be added to, or shall cease to be included in, the First Schedule to the first Act of 1932 shall include power to make such amendments in the said Schedule as are consequential on any such direction as aforesaid.

Amendment
as to duties
on Irish
Free State
goods.

6. Section nineteen of the Act of 1933 (which imposes duties on certain Irish Free State goods) shall have effect, and shall be deemed as from the sixteenth day of December nineteen hundred and thirty-three, to have had effect, as if Part I of the Fifth Schedule to that Act had been repealed and the Schedule to this Act had been substituted for the said Part I, and as if in paragraph 4 of Part II of the said Fifth Schedule the words "any goods" had been substituted for the words "cattle, sheep or lambs."

Short title.

7. This Act may be cited as the Isle of Man (Customs) Act, 1934.

SCHEDULE.

Section 6.

PROVISIONS TO BE SUBSTITUTED FOR PART I OF THE
FIFTH SCHEDULE TO THE ACT OF 1933.

Class or description of goods.	Rate of duty.	Period for which duty chargeable.
1. Live cattle :—		
(a) under 6 months old - - -	£1 5s. per head -	} 16th December, 1933, to 1st August, 1935.
(b) 6 months old but under 15 months old.	£2 10s. per head -	
(c) 15 months old but under 2 years old.	£4 per head -	
(d) 2 years old and upwards not being cattle known as mincers.	£6 per head -	
(e) 2 years old and upwards being cattle known as mincers.	£3 per head -	
2. Live sheep and live lambs - -	10s. per head -	
3. Other animals - - - -	40 per cent. ad valorem.	
4. Meat :—		
(a) Mutton or lamb :—		
Carcases - - - -	10s. per carcase -	} 16th December, 1933, to 1st August, 1935.
Sides - - - -	5s. per side - -	
Other kinds - - - -	40 per cent. ad valorem.	
(b) Pig's meat :—		
Carcases - - - -	Such a rate of duty as will amount to 16s. per cwt. or to 40 per cent. of the value of the goods whichever is the greater.	
Other kinds (not being bacon or ham).	40 per cent. ad valorem.	
(c) Beef and veal - - - -	} 40 per cent. ad valorem.	
Edible offals - - - -		
(d) Other Meat (not being bacon or ham).	30 per cent. ad valorem.	

Class or description of goods.	Rate of duty.	Period for which duty chargeable.
5. Poultry :—		
(a) Dead :—		
Fowls, ducks and geese -	1 <i>d.</i> per lb. - -	} 16th December, 1933, to 1st August, 1935.
Turkeys - - - -	4 <i>d.</i> per lb. - -	
Other kinds - - - -	30 per cent. ad valorem.	
(b) Live - - - -	30 per cent. ad valorem.	
6. Game, whether live or dead -	30 per cent. ad valorem.	

CHAPTER 47.

An Act to provide as respects Dominion Stocks an alternative to the third of the conditions prescribed by the Treasury under section two of the Colonial Stock Act, 1900.

[31st July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Alternative
to Treasury
condition as
respects
Dominion
Stocks.
63 & 64 Vict.
c. 62.

1.—(1) The third of the conditions prescribed by the order of the Treasury dated the sixth day of December, nineteen hundred, and made under section two of the Colonial Stock Act, 1900 (which provides that certain stocks with respect to which prescribed conditions have been observed shall be trustee securities), shall be deemed to have been observed with respect to any stock issued by the Government of a Dominion if either the requirement therein specified has been complied with, or if—

(a) His Majesty's Government in the Dominion has undertaken that legislation which appears to His Majesty's Government in the United Kingdom to alter any of the provisions affecting